

Smt Juhi Bano v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 February 2024 · 2024:AHC:20086-DB · Writ-C No. 464 of 2024 · **Writ dismissed; dues dispute left to the CGRF.**

HEADNOTE

A purchaser who disputes a demand for entire electricity dues, including arrears before her sale deed, and who denies being a consumer under the Supply Code, may still be examined by the Consumer Grievance Redressal Forum as an applicant under Regulation 2.1(b) of the UPERC CGRF Regulations, 2022. Article 226 is declined where that forum remedy is effective.

FACTUAL SUMMARY

Smt Juhi Bano purchased the premises by a registered sale deed dated 12 March 2018. Pursuant to this Court's order dated 4 August 2023 in Writ-C No. 25874 of 2023, she made a representation referring to the U.P. Electricity Supply Code, 2005. Respondent no. 3, by order dated 23 August 2023, required her to pay the entire outstanding dues. She approached this Court saying the sale deed saved her from dues before purchase and that she was not a consumer amenable to the grievance forum.

REUSABLE CONSTRUCTIONS

1. An owner or occupier who applies for supply and disputes pre-purchase dues remains within the CGRF as an applicant under Regulation 2.1(b) of the UPERC CGRF Regulations, 2022, even where she denies being a consumer under the Supply Code, 2005. ¶ 4-6
2. A disputed demand for entire dues, including arrears before purchase, is not tried in a writ where the CGRF is an effective remedy; the petition is dismissed leaving the applicant to the Forum. ¶ 7-8

HOLDING-UNITS

INTERPLAY · UP-2005::7.10

CGRF route for an applicant disputing pre-purchase dues

HOLDING

Respondents invoked clause 7.10 of the U.P. Electricity Supply Code, 2005. The Court held that the plea, read with the definition of applicant in Regulation 2.1(b) of the UPERC (Consumer Grievance Redressal Forum) Regulations, 2022 (an owner or occupier who applies for supply), can be examined by the Forum. The writ was not a fit case for Article 226 and was dismissed, leaving the petitioner to approach the Forum in accordance with law. ¶ 3,6-8

PRINCIPLE TAGS

disputed-bill-relegated-to-cgrf-clause-7.10 The demand for entire dues, including pre-purchase arrears, was not decided on merits. The writ was dismissed because the CGRF could examine the plea of an owner-applicant who denied consumer status. ¶ 3,6-8

alternate-remedy-clause-7.10 An effective remedy before the Forum was held to bar exercise of Article 226; the petitioner was left to approach the Forum in accordance with law. ¶ 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR ELECTRICITY DUES OUTSTANDING BEFORE THE SALE DEED DATED 12.03.2018, AND WHETHER THE DEMAND ORDER DATED 23.08.2023 IS CORRECT

Left open for the Consumer Grievance Redressal Forum. ¶ 2,8

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.